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Tentative Ruling

Re: **Fuller v. Roxberg et al.**
Superior Court Case No. 25CECG01221

Hearing Date: August 4, 2026 (Dept. 502)

Motion: by Plaintiff Lena Fuller for Trial Preference

Tentative Ruling:

To deny, without prejudice. (Code Civ. Proc., § 36, subd. (a), (e).)

Explanation:

Plaintiff Lena Fuller ("Plaintiff") seeks preferential setting of trial under Code of Civil Procedure section 36, subdivision (a). However, the moving papers were filed on July 23, 2026, for hearing on August 4, 2026. The papers are therefore untimely. (Code Civ. Proc., § 1005, subd. (b) ["Unless otherwise ordered or specifically provided by law, all moving and supporting papers **shall** be served and **filed** at least 16 court days before the hearing"]; Cal. Rules of Ct., rule 3.1300(a) ["Unless otherwise ordered or specifically provided by law, all moving and supporting papers **must** be served and **filed** in accordance with Code of Civil Procedure section 1005, and, when applicable, the statutes and rules providing for electronic filing and service."][emphasis added])

Even had papers been timely filed, Plaintiff fails to demonstrate a sufficient basis for the relief sought. Among other requirements, Plaintiff must show that her health is such that preference is necessary to prevent prejudicing her interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) Plaintiff submits that she has suffered two heart attacks over the past several months and has been diagnosed with arrhythmia. (Fuller Decl., ¶ 23.) This is, unfortunately, a common condition with old age. Nothing about this statement, or Plaintiff's statement that she has thyroid and arthritis issues, and takes blood thinners demonstrate a prejudice if preference is not granted. (*Id.*, ¶ 24.) Plaintiff speculates, without the aid of any medical opinion, that her advanced age could lead to another heart attack. Nothing suggests that Plaintiff's present medical care, if any, is or will be insufficient to address these medical issues common to general old age. In sum, the moving papers are factually devoid of any basis to find prejudice. The motion is denied, but without prejudice in the event that circumstances change.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 7-31-26 .

(Judge's initials) (Date)

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Tentative Ruling

Re: ***Central Valley Fallen Heroes v. Lieb et al.***
Superior Court Case No. 23CECG04281

Hearing Date: August 4, 2026 (Dept. 502)

Motion: (1) By Cross-Complainant Ron Dupras to Compel Further Responses to Special Interrogatories, Set One and Request for Sanctions
(2) By Cross-Complainant Ron Dupras to Compel Further Responses to Request for Production, Set One, and Request for Sanctions
(3) By Cross-Complainant Ron Dupras to Compel Further Responses to Request for Admissions

Tentative Ruling:

To deny the motions as to Special Interrogatories, Set One and Request for Production, Set One, as moot. To impose monetary sanctions in the total amount of \$3,600 in favor of cross-complainant Ron Dupras and against cross-defendant Paul Beckley. Within 30 days of service of the order by the clerk, cross-defendant Paul Beckley shall pay sanctions to counsel for cross-complainant Ron Dupras.

To order the motion as to Request for Admissions off calendar, as no moving papers were filed.

Explanation:

Cross-Complainant Ron Dupras ("Cross-Complainant") seeks to compel further responses from cross-defendant Paul Beckley ("Cross-Defendant") as to the entirety of the interrogatories, and requests for production propounded.

In opposition, Cross-Defendant submits that he has since served further responses. Cross-Complainant does not contend otherwise. (Ulmer Reply Decl., ¶ 3.) As Cross-Defendant argues, the further responses supersede the prior responses. The further responses necessitated further meet and confer efforts. (E.g., Code Civ. Proc., § 2030.300, subd. (b)(1).) The motions as to the original responses is therefore denied as moot.

Sanctions are still warranted. Monetary sanctions are sufficient to compel disclosure so that the party seeking the discovery can prepare their case, and secondarily to compensate the requesting party for the expenses incurred in enforcing discovery. (*Ghanooni v. Super Shuttle* (1993) 20 Cal.App.4th 256, 262.) Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust."

While further responses were made, they came at Cross-Complainant's expense to seek court orders to do so. The court finds no circumstances that would render the

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Issued By: img on 7-31-26
(Judge's initials) (Date)